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Recent Work in Ethical Theory and Its Implications for Business Ethics

Denis G. Arnold, Robert Audi, and Matt Zwolinski

ABSTRACT: We review recent developments in ethical pluralism, ethical particularism, Kantian intuitionism, rights theory, and climate change ethics, and show the relevance of these developments in ethical theory to contemporary business ethics. This paper explains why pluralists think that ethical decisions should be guided by multiple standards and why particularists emphasize the crucial role of context in determining sound moral judgments. We explain why Kantian intuitionism emphasizes the discerning power of intuitive reason and seek to integrate that with the comprehensiveness of Kant's moral framework. And we show how human rights can be grounded in human agency, and explain the connections between human rights and climate change.

BUSINESS ETHICS AS AN ACADEMIC DISCIPLINE originated in the mid-1970s in response to ethical lapses in the practice of business. The first academic business ethics conference was held in 1974 and resulted in the first academic business ethics book in 1978.¹ With the financial support of the U.S. National Endowment for the Humanities, courses in business ethics began to be widely taught and the first business ethics textbooks, with titles like *Ethical Theory and Business* and *Ethical Issues in Business: A Philosophical Approach*, appeared in 1979.² As the titles of these books suggest, the founders of academic business ethics were philosophers trained in ethics and political philosophy. Courses on social issues in management existed at that time, but lacked “grounding in ethical theory, some philosophical analysis of the issues, and some structured way of discussing ethical issues in business.”³ The field of business ethics emerged as a species of applied ethics, akin to the field of bioethics that itself emerged in the 1960s in responses to ethical lapses in the practice of medicine, with the explicit intention of using philosophical reasoning and ethical theory to provide normative guidance for business policy and public policy regarding business.

Today, business ethics as an academic discipline is more interdisciplinary than at any time since its inception over thirty-five years ago. The interdisciplinary nature of the field is represented in the academic literature where philosophers regularly work in the social sciences and social scientists engage ethical theory and political philosophy thereby producing scholarship that transcends disciplinary “silos” by drawing from the strengths of multiple disciplines and bodies of scholarship. In this essay we provide an overview of some the most important developments in ethical theory that have appeared in the last ten years that are of relevance to business ethicists. Our overview is intentionally pluralistic, since our aim is provide scholarly resources rather than to persuade the reader of one theoretical perspective

or another. We provide a guide to some of the most important recent developments in ethics while recognizing that the views presented below are not all compatible with one another. We leave it to the reader to assess for him or herself which of the recent contributions to ethical theory discussed below may be helpful to his or her theoretical endeavors.

We begin in Part I with an overview of recent work in ethical pluralism and in ethical particularism. This work shares in common a skepticism regarding the ability of traditional versions of “master-principle” theories such as utilitarianism and Kantianism to provide us with normative guidance. These critics argue that ethics should be concerned not merely with ethical theories but the ethically relevant facets of situations and the practical rationality needed to make ethically sound judgments. Despite these recent developments, Kantian influences in contemporary ethical theory remain strong. Pluralists, for example, typically embrace aspects of Kant’s ethical thought. And contemporary ethical intuitionism, one of the most important recent developments in ethical theory, explicitly draws from the work of Kant. In Part II of this essay, we provide an overview of contemporary Kantian intuitionism. From the perspective of intuitionists, common-sense obligations have a central place in determining ethical conduct and can provide a satisfying framework for ethical decision making in business. Another area where Kantian influences remain strong lies in the grounding of human rights. In Part III, we report on recent developments in ethical theorizing about human rights. Much recent work on human rights has been produced from the perspective of political theorists and legal scholars who focus on the implications of national laws and international conventions and treaties for human rights. We focus not on their work, but on the work of philosophers seeking to provide a firm foundation for human rights discourse. One pressing issue that has received a great deal of attention from moral philosophers in recent years, and which has direct relevance to human rights, is climate change. Part III concludes with an overview of recent work on the ethics of climate change. In each major part of this essay the implications of ethics scholarship for business ethics research is also discussed.

I. PLURALISM AND PARTICULARISM

Business ethics is a species of applied ethics. And the name of this wider category suggests a certain image of the way in which business ethics should proceed. Namely, that we should start with this independently arrived-at object—“ethics”—the fine details of which have already been sorted out for us by philosophers with a specialty in that area, and then “apply” this object to the issues of business. Usually, the “ethics” that is to be applied is understood to be ethical *theory*—most often some variety of consequentialism or deontology. And this theory, it is hoped, will yield some kind of easily digested principle which, once we have fed the relevant empirical facts into it, will allow us to derive guidance for correct behavior in the particular circumstances confronted by business organizations. But, according to some normative theorists, there are good reasons for doubting that this is the best way for business ethicists to proceed. Some of these reasons are mainly rhetorical.

Ethical theories are controversial, and seem to be subject to intractable reasonable disagreement.⁴ One would seem to gain little in the way of persuasive force, then, by arguing for a controversial conclusion in business ethics (e.g., the permissibility of insider trading) on the basis of moral premises that are equally or perhaps more controversial (e.g., the truth of classical hedonic act-utilitarianism). Other reasons, however, are to be found more in considerations internal to ethical theory itself. In this section we will review some of the ways in which ethical theory has developed in recent years that support an approach to business ethics that differs sharply from the conception of “applied” ethics described above.

Doubts regarding the conception of ethics implicit in the caricature of applied ethics above are not new. Many philosophers have questioned the idea that ethical theory properly involves the search for a “master principle” applicable to any and all species of moral problems.⁵ Bernard Williams, most notably, devoted much of his philosophical career to arguing against moral theorists’ attempt to reduce the complexity of our moral thought to a single principle. As a descriptive matter, Williams noted, our moral beliefs are the product of “a long and complex ethical tradition, with many different religious or other social strands.”⁶ There is thus no reason to expect, according to Williams, that the apparent complexity of our beliefs is merely a surface-level phenomenon and that there *must* be an underlying unity to them that could be captured by a single principle. And just as there is no reason to expect such a unity regarding our moral *beliefs*, so is there no reason to expect it regarding moral *reality*. “Why is there an expectation that [ethical truth] should be simple? In particular, why should it be conceptually simple, using only one or two ethical concepts . . . rather than many?”⁷

One finds in Williams and in other critics of master principle theories of morality two main arguments. One—an argument from complexity—is gestured at in the quotations in the preceding paragraph. Prior to thinking about morality in any kind of theoretical or systematic way, we hold a variety of moral values and convictions that do not seem reducible to any single principle or consideration. If, as it seems it must, the starting place of moral theorizing is to be our considered moral judgments, then it seems unlikely that we will end up embracing any single overarching master principle. The second argument might be called the argument from counterexamples. This argument holds that any principle that purports to specify right and wrong action in all circumstances will be subject to counterexamples—cases where the action demanded by the principle is clearly morally wrong, or where an action prohibited by the principle is clearly morally permissible. Utilitarianism, for example, has often been regarded as a theory that is particularly liable to generating such counterexamples—permitting the torture of the innocent, or prohibiting spending \$2 on a cup of coffee for oneself (rather than sending the money to OXFAM where it will create more impartially construed good).⁸ But other theorists have held that Kant’s Categorical Imperative—especially in its universal law formulation—is equally subject to counterexamples. Maxims formulated with an exceptionally high or low degree of specificity may be universalizable but immoral, or non-universalizable but not immoral.⁹ Whether such purported counterexamples are ultimately persuasive reasons to reject either utilitarianism or Kantian deontology is an issue beyond

the scope of the current essay. What is important for our purposes is the challenge such counterexamples pose to the idea that the complexity of moral reality can be captured in a single master principle. Perhaps a suitably refined and nuanced understanding of Kantianism or utilitarianism would avoid such counterexamples, and many ethical theorists continue to embrace research programs that involve the search for such refinement. Others, however, are persuaded by the persistency of such counterexamples to approach moral theory in a way that eschews master principles as such.

But if the search for a master ethical principle is to be abandoned, then what form will ethical theory take? Ethical theorists have responded to Williams's critique in a number of ways; and while these approaches share a rejection of the ideal of an ethical master principle, they differ in what they substitute for this ideal.

A. *Pluralism*

Pluralists hold that there are a "plurality of fundamentally morally relevant features that are the basis for the rightness and wrongness of actions."¹⁰ The clearest contrast would be a monistic theory such as classical hedonistic utilitarianism.¹¹ Classical utilitarianism is monistic insofar as it holds that, fundamentally, there is only one value relevant for determining the rightness and wrongness of actions—pleasure (including the avoidance or reduction of pain). Of course, lots of different things—music, massages, food—can give us pleasure, and so lots of different things are relevant for the rightness or wrongness of action even on the classical utilitarian view. But classical utilitarians are committed to holding that these goods are only valuable *as sources of* pleasure. Pluralism differs from classical utilitarianism, then, not in holding that many things can be morally relevant and determinative of right and wrong action, but in holding that many things are morally relevant in a *non-derivative* way.¹²

Some pluralists think the diverse morally relevant features of the world can be captured largely in the way that other non-pluralistic moral theories have tried to explain them. This is the sort of pluralism advanced by David Schmidtz in his work on justice.¹³ For Schmidtz, moral theories are like maps.¹⁴ They are tools that we construct to help us answer our questions about a particular subject matter. And like maps, theories are necessarily incomplete representations of reality—not a direct copy of reality itself. A full-scale replica of a city would not be a helpful tool for one whose goal is simply to figure out the quickest way to get to work. But the way in which a map will helpfully abstract from reality will depend on one's purpose, and different purposes will call for different maps.¹⁵ Thus, we might hold that utilitarianism captures an important and morally relevant aspect of the world having to do with the goodness and badness of states of affairs. A pluralist like Schmidtz will part ways with the utilitarian, however, in insisting that the utilitarian insight sheds light on *only part* of the moral universe. To understand another part—the way in which persons are ends in themselves worthy of respect, for instance—we may need to appeal to another moral theory such as Kantian deontology. Different theories provide us with different ways of understanding the moral world, and there is no

reason to expect that it will be possible to come up with a kind of “super theory” that tells us precisely when and in what circumstances it would be appropriate to use one theory rather than another. Much like the virtue ethicist who stresses the importance of practical wisdom,¹⁶ then, the pluralist holds that the application of theory to real world problems will require the exercise of non-codifiable judgment.

John Kekes’s pluralism also appears to be of this form. For Kekes, we are driven to pluralism by a recognition that any mode of reflection will, if carried far enough, lead to a “predicament from which there seems no reasonable way out.”¹⁷ We develop modes of reflection to cope with the problems of everyday life, but these modes give rise to philosophical problems because we develop *different* modes of reflection to deal with different problems, and these different modes yield different and incompatible assessments of the significance of various facts. The solution is to recognize that a plurality of modes of reflection—“scientific, historical, religious, aesthetic, moral, and subjective”—are appropriate, and that there is no reason to expect that we will be able to establish any one mode of reflection as superior in a general way.¹⁸ Pluralism thus exists both within morality—for there exist different modes of reflection by which we can assess the moral significance of an action or event—and between morality and other non-moral modes of reflection.

Other pluralists hold that morally relevant features are best captured in terms of general principles. W. D. Ross’s theory of *prima facie* duties is one example of this form of pluralism.¹⁹ Ross held that moral truth can be expressed in the form of principles expressing *prima facie* duties, such as the duty to express gratitude or to act with beneficence. Since these principles cannot be reduced to one overriding principle, Ross is a pluralist. And since he believes in a plurality of principles rather than a pluralism of overarching ethical theories, he is a different sort of pluralist from the first sort.

Finally, one might hold that there are a plurality of morally relevant considerations in the world, but that these considerations cannot or need not be captured by general principles. This type of pluralism has attracted significant attention in recent years, so much so that it qualifies for its own title—“particularism.” The next section will address it in detail.

B. Particularism

Most of us think that someone who is good at moral reasoning will rely on moral principles in their deliberations. They will think, for instance, that it is wrong to lie as a matter of principle, and that this principle gives them reason to refrain from lying in whatever particular circumstances they might find themselves. Particularists deny that this is how our moral reasoning ought to work.²⁰ The particularist approach to morality, defended most notably by Jonathan Dancy, holds that arriving at a correct moral decision is a matter of adequately taking account of the particular circumstances in which one is acting.²¹ And taking adequate account of one’s circumstances entails recognizing that a feature which creates reasons of a sort in one set of circumstances might create reasons of an entirely different sort in another set of circumstances. Hence, in many circumstances, the fact that an action

is an instance of telling a lie will give one reason not to perform that action. One shouldn't lie to one's boss, for instance, to cover up for one's mistake on the job. In other circumstances, however, the fact that an action is an instance of telling a lie will *not* generate this reason. If telling a lie will allow you to protect an innocent person from a malicious threat, then all else being equal you have a very strong reason to lie. General principles, then, which purport to set forth a universal rule regarding the rightness or wrongness of lying, seem hopeless. Indeed, not only would a principle saying that it is always wrong to lie be incorrect, but so, too, would a principle of the sort given by W. D. Ross which held that lying always *contributes to the wrongness* of an act, even if, all things considered, one might have good reason to lie in particular circumstances. For in some circumstances, the particularist will claim, the fact that an action is a lie does not seem to count against that action *at all*.²² Lying to the Nazis about the Jews hiding in your attic is not a wrong outweighed by a greater good; it is simply not a wrong at all.²³

This conclusion is a consequence of the particularist's view of moral reasons—a doctrine referred to as “holism of reasons.”²⁴ According to this view, what counts as a reason in any particular circumstance depends on the entirety of facts about that situation. In some circumstances, the fact that an action is a lie will count as a reason against performing that action, and in other cases it will not. We cannot tell until we have looked at the details of the situation—just as an artist could not say whether a bold stroke of red would be a good contribution to the painting until she knows *which particular* painting you have in mind.²⁵

For the particularist, then, the best moral theory can hope to do is to shed light on the ways in which different features contribute to the rightness or wrongness of actions in different circumstances.²⁶ Theoretical reflection can help us to discover generalizations about the morally relevant features of situations. These generalizations, however, will not take the form of absolute principles. Rather, they will be defeasible—they offer us a presumptive way of understanding the world, but it is one which we must be ready to abandon should the facts of a particular situation warrant doing so.²⁷ The determination of how to act in any particular set of circumstances, however, will once again be a matter of judgment. The correct method of moral deliberation cannot be captured in any general rule or principle.

C. Implications for Business Ethics

The increasing influence of anti-master-principle theories of morality has been one of the most striking features of the past ten years of moral philosophy. Moral pluralism and particularism have received significantly greater prominence in the literature, and the details of these accounts have been defended with increased sophistication. At the same time, virtue ethics, which shares the pluralist/particularist rejection of an ethical master principle, has continued to feature prominently in the literature of both theoretical and applied ethics.²⁸ This section will attempt to convey the importance of this trend for business ethicists by suggesting how the lessons it imparts can help us to grapple with an issue of perennial importance: that of ethical expertise.

The question of ethical expertise often arises in debates surrounding the teaching of business ethics.²⁹ Presumably, those who attempt to teach business ethics should have a kind of ethical expertise, and so one question concerns what sort of people—philosophers, theologians, experienced business executives—are likely to have it. Other questions have to do with the kind of knowledge or skill in which ethical expertise is thought to consist, and the best method or methods of imparting such expertise to those who lack it.

Of particular relevance for our purposes here is the question of whether and to what extent ethical expertise will consist in mastery of moral theory. If and to the extent that it does, the moral philosopher will have a kind of special claim to ethical expertise, and perhaps therefore to analysis and teaching of the kinds of ethical issues studied by business ethicists.³⁰ If, on the other hand, ethical expertise consists of something else altogether, then the claim of the philosopher to any special deference as the bearer of such expertise is thereby diminished. This position could, as it does in the work of Richard Rorty, take the radical form of a denial that a mastery of moral theory has any relevance at all to ethical expertise.³¹ Or, it could take the more moderate form, as it does for John Morse, of the claim that knowledge of ethical theory is important but not sufficient for ethical expertise; genuine ethical expertise requires *practical*, not just *theoretical* wisdom.³²

The insights of moral particularism and pluralism can help us to shed new light on this debate, and to see what truth there is on both sides of it. Critics of the importance of theory like Rorty point to the existence of moral dilemmas, and note that ethical theory provides us with “no algorithms” for resolving them.³³ Considerations such as this lead Rorty to the “anti-Platonist” conclusion that there are no unchanging absolute moral truths for ethical theory to grasp.³⁴ In response, defenders of ethical theory have pointed out that Rorty’s radical rejection of the notion of ethical truth leaves him unable to explain why we care about—and why it is *right* for us to care about—consistency in our moral judgments.³⁵ And many particularists and pluralists will agree with the force of this response. But one of the points that both particularists and pluralists have taken pains to stress is that too great an emphasis on consistency can lead to distortions in our moral reasoning.³⁶ Moral reality is complex, and any attempt to force that reality into the mold of a single overarching theory will inevitably omit or misinterpret some aspects of it.

Particularists and pluralists will thus agree that ethical expertise involves more than the mastery of a single, correct moral theory. For the pluralist, it will involve knowing when a principle or theory is able to shed useful light on a problem, and when it would not. For a particularist, it will involve learning how to discern the morally relevant features of a situation, drawing on past experience as a guide in the proper way, and balancing competing considerations appropriately.³⁷ For both the particularist and the pluralist, ethical theory will have a role to play in helping us to reflect on our experience and deliberate about current and future problems. But theory itself will not tell us how we should act; that knowledge can come only from the exercise of judgment informed by imagination.³⁸

II. KANTIAN INTUITIONISM AS A RESOURCE IN CONTEMPORARY BUSINESS ETHICS

Our emphasis on its interdisciplinarity and structures makes clear why business ethics is not a subfield of any one discipline or merely applied ethical theory. Contributors to it may or may not proceed by applying a general theory in ethics to problems in business. They often exercise a surprising degree of methodological and substantive autonomy. But they generally do not ignore philosophical contributions to general ethics, and the most prominent contributors to the field have usually worked within a well-developed tradition in moral philosophy or have at least taken into account developments in the literature of moral philosophy. Among the perennial resources in that literature have been three kinds of theory: virtue ethics, with Aristotelian versions being most prominent; the other two are the famous master principle theories, Kantianism and utilitarianism. These categories represent the “big three” in the recent history of ethics and tend to appear, in one guise or another, in our leading business ethics books. There is, however, a fourth, quite different kind of theory that arguably traces as far back as Plato, is reinforced by major elements in Aquinas, and has been increasingly present in the past century. When it is named, “intuitionism” is often used, but not all its proponents use this term, particularly since so much of the position is arguably ethical common sense. Here we open with an outline of the theory which indicates some of its advantages over the three more commonly orienting theories and provides some implications for business ethics. The outline is usefully compared with Part I of this paper, which portrays a more particularistic pluralism, as well as with versions of the three historically dominant orientations in ethics.

A. Intuitionism as an Ethical Perspective

Intuitionism is properly so called because it appeals mainly to ethical standards that thoughtful educated people find intuitive. One implication of this is that, once these standards are adequately understood, we tend to accept them—at least in their applications to practical matters—without arguing for them from prior principles and, indeed, tend to argue *from* them in explaining or justifying ethical judgments. A natural place to start is with W. D. Ross’s widely known list of “prima facie duties”—obligations, in more recent terminology—as a guide.³⁹ Other major writers in the tradition include Henry Sidgwick in the nineteenth century and, in the twentieth, G. E. Moore, A. C. Ewing, Thomas Nagel, Derek Parfit, and perhaps Judith Jarvis Thomson.⁴⁰ Rossian prima facie duties encompass at least most of our core ethical obligations: those we have simply in virtue of being moral agents and not from any particular cultural or religious perspective (which may impose further obligations). These core obligations summarize a wide-ranging conception of what might plausibly be regarded as the constitutive standards of morality.

Ross defends a widely acclaimed list of “prima facie duties,” i.e. (in this context), moral obligations that prevail unless overridden by some set of competing moral obligations.⁴¹ Ross’s account has recently been defended and amplified by Robert

Audi in *The Good in the Right: A Theory of Intuition and Intrinsic Value*. For Ross those duties are as follows:

1. *Justice*: including the positive obligation to prevent and rectify injustice as well as the negative duty not to commit injustice.

The obligations of justice bear on virtually all human relations, but especially to distribution of benefits and burdens. There are extremely important applications in business: inside an organization, to salary, bonus, and promotion; outside it, to (among others) customers, suppliers, the community in which the business is conducted. In most contexts, the common notion of fairness is roughly equivalent to that of justice.

2. *Non-injury*: roughly, the obligation to avoid harming others.

Given human vulnerability, this is an obligation we hope others will fulfill, and we must try to fulfill ourselves. In business, it implies providing a safe environment for workers and producing safe products and services. (Psychological as well as physical injury must be included.)

3. *Fidelity*: promise-keeping and avoidance of lying (both are cases of fidelity to our word).

Honesty in what we say is crucial in any walk of life, and, in business, it is normally essential for the trust in leaders that is crucial for their effectiveness. Ross conceived honesty as an element in fidelity; it is in a sense *communicative fidelity*, mainly a matter of one's word as communicated being faithful to one's beliefs. By contrast, promise-keeping is *behavioral fidelity*.

4. *Reparation*: the obligation to make amends for wrong-doing.

This applies above all to people who are wronged and merit compensation. The salient cases are injuring persons. The environment can also be an object of wrong-doing. Whether or not wrongs done regarding the environment ultimately call for reparation on account of people (or animals), reparation is surely a *prima facie* obligation. Reparation is arguably a kind of *compensation*; but although reparation often requires compensation, the latter does not entail the former. If, through no fault of mine, something we ship is damaged, we may owe you compensation under our agreement, but we have not wronged you and my obligation is not one of reparation.

5. *Beneficence*: the obligation to do good deeds, in particular to contribute to virtue, knowledge, or pleasure in others.

Medical benefits, pensions, and services such as counseling come under this heading as applied in business. But the dimensions of beneficence are unlimited. There is no good formula for deciding when, given the many opportunities most of us have, one has fulfilled this obligation; but it is widely agreed that, at least if no self-sacrifice is required to do something good for others, then doing it is within the scope of the obligation of beneficence. The obligations in question encompass those sometimes

said to go with *stewardship*. Business leaders should protect and stimulate development in those they lead.

6. *Self-improvement*: the obligation to better oneself.

This calls for enhancement in one's character—development of *virtue*, in a formerly more usual terminology—and in one's knowledge. It is arguable that this is a prudential rather than an ethical standard, but if ethics concerns how *persons* are to be treated, then self-directed conduct should be included. It might be added that if CEOs and managers do not exhibit a sense of obligation to better themselves, it would seem less likely that others in the company will feel any such sense.

7. *Gratitude*: the obligation to express appreciation for good deeds toward us, where these include good work done under our direction as well as beneficent deeds toward us.

This obligation becomes stronger roughly in proportion to how difficult the good deeds are and in inverse proportion to how strong an obligation the person in question has (or had) to do them. Expressions of gratitude are crucial reinforcement in the business world, and they include reciprocation at the same level but need not rise to that. They are owed for certain deeds irrespective of their good consequences and in that way are backward-looking, but their incentive value brings them under the obligation of beneficence and they are to that extent forward-looking.

On Audi's view, two further *prima facie* obligations have a similar status.⁴² The first is

8. *Liberty*: the obligation to preserve and, where possible, enhance freedom and autonomy.

We should seek to nurture freedom and autonomy (roughly, self-government) in persons. In business, this implies permitting and sometimes encouraging independence and innovation. This is doubtless typically a case of beneficence, but neither beneficence nor justice exhausts the content of the obligations in the range of liberty.

The second obligation beyond Ross's list is constituted by what Audi terms

9. *Obligations of manner* (roughly, of respectfulness): these concern *how* we do what is obligatory as opposed to *what* we must do in some way or other—our obligations of *matter*.

Obligations of manner need explanation. In a sense, they are *adverbial*. Consider giving directives to employees *firmly* vs. *timidly*, *politely* vs. *rudely*, *respectfully* vs. *condescendingly*. These different manners of doing the same basic deed make a vast difference in styles of management and in its effectiveness. Differences in manner can mount up to the difference between the magnetism of an incentive from ahead and the bruise of a kick from behind. These duties are especially important for role modeling.⁴³

To each of these obligations corresponds a principle asserting a *prima facie* obligation to act accordingly. Thus, one should (*prima facie*) avoid lying, keep one's promises, etc. That these principles represent ethical common sense is confirmed by the way we generally say to our children things like, "Don't lie," "We don't slap

people,” “You should keep your promises,” and “You should think of others’ needs and not just yours.” Ross considered these principles self-evident—by which he did not mean *obvious*—but the association between the self-evident and the obvious produced much (we think) misplaced opposition to intuitionism. Here it suffices to say that these principles may be considered intuitive and true whether one thinks them self-evident or not, and their truth alone is sufficient for their worthiness to play the ethical roles they should and often do play.⁴⁴

Giving these common-sensical obligations a central place in determining ethical conduct is not confining: it is indeed difficult to think of obligations that do not fall under one or more of the categories. The framework is, moreover, compatible with various ethical theories. These principles do not stand in need of justification from other considerations, but they can be supported by many kinds, e.g. Kantian, utilitarian, or Aristotelian. Audi’s preference is to construe Kant’s Humanity Formula—which requires that we treat persons never merely as means but always as ends—in a way that enables us to see it as unifying and supporting these principles. But, although they can stand on their own—a pluralistic anti-theory, as it were—the Humanity Formula itself is also clarified by taking them as partial specifications of what *constitutes* treating persons as an ends rather than merely as means.⁴⁵ It is arguable that Audi’s resulting Kantian intuitionism is preferable to both Kant’s and Ross’s positions taken alone. It is also accommodates a kind of particularism about *overall* obligation without granting the validity of Dancy’s position (discussed above) that in some cases there is simply *no* reason to avoid lying. Thus, if one could deflect the would-be killer at least as well with a truth as with an untruth, the former is preferable.

With business ethics in view, we should note a wide use of “integrity” in which it perhaps encompasses all the Rossian obligations, at least if they are all constitutive of being ethical. There is no need to oppose emphasizing integrity so conceived, but the term is given such high prominence in business-ethical discussion that we should stress that it is simply not adequately clear to constitute, by itself, a good focus for solving problems in business ethics.⁴⁶ If, however, being a person of integrity is sufficiently clarified in relation to the obligations just described, the term may then offer the advantage of combining convenient summary with its own exhortatory force. Integrity as the intelligent internalization of the nine listed obligations is incomparably valuable.

At this point one might wonder how the ethical standards just formulated reflect some prominent concepts considered essential for good leadership and associated with good ethics. Take, for instance, authenticity and transparency. The first is commonly used as a name for something like integrity in the wide sense of moral soundness.⁴⁷ The notion of transparency is used with almost equal breadth in some cases,⁴⁸ but in a narrower sense it involves allowing what one does to be visible to a high degree by certain people, such as employees and financial analysts. This might be considered a requirement of fidelity or veracity, but that would hold only if one has committed oneself to such visibility or claimed to provide it, say in making financial statements.

One more point is necessary if the framework of common-sense obligations is to be adequately understood. There are often conflicts of *prima facie* obligations, say duties to give employees safe working conditions and good benefits and, on the other hand, obligations to produce good profits for stockholders. Some in business ethics may think that this is where one needs a master principle theory such as Kantianism or utilitarianism to achieve resolution, but many are skeptical about their success. But it is notoriously difficult to get the quantitative data required by utilitarianism and to formulate—*before* deciding on a resolution of a moral problem—a rationally universalizable principle that yields a solution. Ross thought that *no* theory can help in resolving such conflicts and that we must here appeal to practical wisdom: roughly, to our intuitive sense of what resolution is best, where we consider both past cases as precedents and the future commitments we would make if we took a given resolution of the conflict as precedential. Here he cited Aristotle's famous statement that the decision rests with perception. He probably took Aristotle to mean something close to intuition, but, ironically, this remark may have contributed to what might be called the virtue-ethical rebellion against rule ethics that has been prominent since the late 1950s—and is partly responsible for the disappointment with master-principles stressed in Part I. Certainly, practical wisdom is ethically indispensable, and no simple formulas can resolve all conflicts of obligations. But there are theoretical positions that can help in this. According to Audi, the best of these is the Kantian intuitionism sketched here, supplemented by considerations drawn from the theory of value.⁴⁹ We cannot pursue the application of Kantian or other general ethical theories to conflicts of obligations, but let us provide one illustration.

The moral status of affirmative action—roughly, a kind of preferential treatment of a targeted group based on (e.g.) race or gender rather than a qualification for doing the work in question—remains controversial. We can see the case for it by considering (among others) the obligations of reparation and beneficence. Reparation may be argued to be due to African-Americans or women because of past discrimination; beneficence may be argued to be best served by diversifying the workforce, which should contribute to the good of society. We can see the case against it by considering (among others) the principle of justice, which calls for equal treatment in matters of distribution. No ethical view makes this matter easy, and there is room for rational views on each side (especially if the *degree* of preference is slight). But are we not better off identifying the clear moral standards pulling each way than *just* trying to calculate the utilities or to formulate a universalizable maxim? We say “just trying” because the common-sense intuitionism portrayed here does not ignore Kantian or even utilitarian considerations: it allows seeking an appropriate *reflective equilibrium*. This is roughly a kind of balanced integration among our intuitions about the particular case, guided by (1) the relevant intuitive standards (often all of those listed) and the facts they lead us to identify and (2) Kantian or utilitarian considerations of the kind we may appeal to without treating any person merely as a means to the general good. Indeed, *any* serious appeal to beneficence is in effect an appeal to a kind of utility; but intuitionists, as ethical pluralists, refuse to allow

that to be the only relevant variable or to impose a hierarchy among obligations such that some kinds *always* have priority over others.

Various decision models can be integrated with the common sense framework sketched here. One model has five steps:

1. *Classify* the case to determine what prima facie obligations apply (e.g., in a layoff decision);
2. *Identify conflicts* of obligations;
3. *Ethically assess* the importance, in the context, of each obligation involved (tentative numbers may be used to “quantify” for this purpose);
4. *Select options*: the morally best alternative(s), formulating a way to do the thing in question, as is required by the obligations of manner; and
5. *Decide* on a course of action, choosing the option best supported by reflective judgment (or one of a set of equally acceptable alternatives).⁵⁰

If the intuitionism sketched here is Kantian, one may wonder where Kantian universalization comes in. If the ethical problem we face is very important or we want enhanced confidence or ability to explain our decision to others, we may view the decision as precedential and formulate a covering principle that is rationally universalizable. But universalization is not always necessary for good ethical decisions, and it may not even be possible until *after* steps of this sort are taken. This procedure is of course non-quantitative, fallible (though indefinitely repeatable); and non-exclusive: there is not always a *best* resolution. But does it not represent what many reflective moral agents do? And is any single-principle or, for that matter, simpler, account preferable? We hope readers will find this question worth pursuing.

On the view presented here, then, much of the best reflection in business ethics is guided by the intuitive standards cited above. They may be held to represent a comprehensive but concrete indication of our overall ethical obligations. Anchoring ethical discussion in them allows their integration both with master principle theories and with various theories of value; but ethical decision need not be derived from applications of those theories or a strategy aimed at maximizing some single value. If reasonable disagreements in ethics cannot be eliminated, we at least have a framework for clarifying them and, in many cases, approaching resolution.

III. HUMAN RIGHTS AND BUSINESS

There is a long and rich history of philosophical reflection on the nature, content, and ethical implications of human rights that extends at least as far back in intellectual history as Locke. In the latter half of the twentieth century, ethical theorists such as H. L. A. Hart, Maurice Cranston, Joel Feinberg, and Henry Shue sought to clarify our understanding of human rights and corresponding duties. For example, Henry Shue famously and persuasively argued thirty years ago that the distinction between so called negative rights to be free from interference and so called positive rights to certain goods or services is untenable, thus placing the argumentative burden on libertarians who might wish to defend negative rights but not positive rights.⁵¹ In the

last ten years philosophers have made additional contributions to our understanding of human rights that merits the attention of business ethics scholars. This work is particularly important for business ethicists working on labor practices, transnational corporate activities, and environmental issues such as climate change.

A. *The Nature of Rights*

Given the wide range of “rights talk” that is to be found in the academic literature in law, politics, and philosophy—such as natural rights, legal rights, political rights, human rights, and basic rights—it is helpful to have a clear conceptual framework for understanding rights. Leif Wenar has provided a modified Hohfeldian framework for understanding rights that, he argues, can accommodate all rights assertions.⁵² This framework has four basic types in two categories. The two categories are first-order rights over one’s mind and body and second-order rights over first-order rights. The four types of rights are privileges, claims, powers and immunities. The first-order rights understood as *privileges* provide the rights bearer with the discretion to do something or not do something. For example, the rights bearer can choose to sell or barter her property or to not sell or barter her property. First-order rights understood as *claims* “entitle its bearer to *protection* against harm or paternalism, or to provision in case of need, or to specific *performance* or some agreed-upon, compensatory, or legally or conventionally specified action.”⁵³ An employee’s right to be free from corporeal punishment and to his or her pay are examples of claim rights. Second-order rights to alter privileges and claims are either *powers* or *immunities*. Powers are the “the ability within a set of rules to alter the normative situation of oneself or another” by conferring authority with respect to first-order rights. For example, one has the power to promise to pay a contractor a fee for services that confers a right to the contractor to receive payment. Finally, an immunity is a right not to have one’s normative situation within a set of rules changed by others. An example would be the right of a U.S. citizen not to have her right to organize and collectively bargain undermined. Together, Wenar argues, these four types of rights provide a framework for conceptualizing all of the rights that one might possess. This conceptual framework is useful for business ethicists with narrow concerns regarding employee rights or consumer rights within a particular set of rules, and it is useful for business ethicists more broadly concerned with the human rights duties of businesses operating transnationally and in weak or corrupt states.

Political rights play a variety of functions in the lives of humans and business. Individuals may enjoy the right to vote and the right to political speech, but such privileges are legitimately constrained at work where one’s duties are determined by the actual or implicit contract with one’s employer. Claim rights, on the other hand, are thought to carry even greater weight. This is because claim rights have moral authority, as Amartya Sen makes clear. “Just as utilitarian ethical reasoning takes the form of insisting that the utilities of the relevant persons must be taken into account in deciding what should be done, the human rights approach demands that the acknowledged rights of everyone, in the form of respecting freedoms and corresponding obligations, must be given ethical recognition.”⁵⁴ While political

theorists typically appeal to real or hypothetical agreements to defend rights, and legal theorists ground rights in national and international law, ethicists appeal to moral arguments when defending rights. The advantage of an ethically grounded account of rights is that it is reliant neither on legal frameworks nor real or hypothetical political agreements. Ethical or moral arguments for human rights stand or fall on the quality of the ethical reasoning deployed.

The precise nature and content of claim rights is disputed, as are the duties of corporations and other businesses with respect to human rights. These disputes mirror disputes regarding the rights of individuals in relation to other individuals and to states where the specific entitlements of individuals and the specific obligations of duty-bearers are contested. Such disputes have led some scholars to dismiss the idea that *any* rights can be identified and even to compare an approach to human rights that regards rights as ethical claims grounded in theory to fundamentalist religion. For example, historian and Canadian politician Michael Ignatieff claims that "Foundational beliefs of all kinds have been a long-standing menace to the human rights of ordinary individuals."⁵⁵ And he includes accounts of human rights that ground rights in ethical theory as an example of this sort of "idolatry."

But as Brian Schaefer has persuasively argued, the arguments of critics of a foundational approach to human rights, such as Ignatieff and Richard Rorty, fail on at least two grounds.⁵⁶ First, their arguments are inconsistent insofar as they themselves defend human rights by appealing to moral facts about humans, such as human dignity, and so appeal to foundations to support their own views.⁵⁷ Implicit or explicit moral claims of this nature can be read in nearly all scholarly discussions of rights, regardless of whether the author is a legal scholar, political theorist, sociologist, or philosopher. Second, Schaefer argues that foundationless approaches to human rights cannot be implemented universally without violating the very values associated with rights by means of coercion against individuals and cultures that are "rights-resistant."⁵⁸ In order to implement human rights regimes in rights-resistant cultures, such cultures, or nations, will need to be coerced into compliance with economic or military means thereby undermining the autonomous decision making of leaders of the culture or nation that is rights-resistant. In contrast, Schaefer argues, appeals to moral facts about humans provide rational grounds, at least in theory, for persuading those who are rights-resistant that rights should be respected. But even if one is not persuaded that rational arguments in defense of rights grounded in moral facts are likely to meet with success in dealing with rights-resistant cultures, it appears true that critics of foundational accounts of rights are unable to defend human rights without appealing to moral facts. One way of extending Schaefer's argument to business ethics would be to acknowledge the challenge of providing a firm grounding for rights while at the same time acknowledging the persuasive impact a clear moral argument for human rights might have on business organizations including trade associations, especially if such an argument were widely deployed by non-governmental organizations.

Schaefer's claims about the possibility of a universal account of rights is aimed at critics of recent international human rights discourse but he does not himself defend a particular moral grounding for human rights. However, James Griffin has recently

defended such an account of rights and his arguments merit careful attention.⁵⁹ Griffin grounds his argument in a distinctive feature of humanity, namely in the basic interests functioning humans have as persons. But why should personhood confer moral weight? One answer is that persons enjoy unique dignity because of their capacity for self-governance and that as such they must be respected as irreplaceable ends in themselves. This view, famously defended by Kant, would require an explanation of the concept of respect and an argument grounding rights in respect. Griffin prefers a second answer, one that is grounded in the goal orientated nature of persons and in their practical interests. "It is," he writes, "because of the special importance, though by no means necessarily uniquely great importance, of these particular human interests that, on this understanding, we ring-fence them with the notion of human rights. This would explain how we might see human rights with a teleological morality, where 'teleological' is a broader term than either 'consequentialist' or 'utilitarian.'"⁶⁰ The normative conception of human agency defended by Griffin transpires in stages over the course of a human life. It requires the autonomous conception of a worthwhile life.⁶¹ It requires a minimal provision of health, physical, mental welfare, and education.⁶² And it requires the liberty to pursue one's conception of a worthwhile life.⁶³ He argues that a recognition of these basic human interests requires that we regard them as rights, but not that we regard them as inviolable. Rights should be resistant to moral trades offs, but not so resistant that other values cannot trump rights under certain circumstances. Griffin's view is consistent with the important insight of Audi that acts that do not violate a moral right may yet be wrong since rights and duties cannot account for all morally relevant considerations.⁶⁴

Griffin's work on rights provides business ethicists with one valuable tool for identifying core human rights that should be respected in business.⁶⁵ It also provides a basis for engaging the work of the United Nations (UN) Human Rights Council's significant effort to identify the human rights obligations of transnational corporations and other business enterprises.⁶⁶ This work, initiated in 2005 by the Human Rights Council in an effort to clarify the implications of the United Nations global impact, has received little attention from business ethicists despite being identified by the Human Rights Council as an ongoing priority.⁶⁷

B. Climate Change, Human Rights, and Emission Rights

Another important contemporary issue that has received surprisingly little attention from business ethicists is global climate change. This is particularly surprising given the significant attention the topic has received from governmental leaders, non-governmental organizations, and the media. Business operations and the end use of business products are responsible for the majority of global CO₂ emissions. In the U.S. the transportation end-use sector alone contributes approximately one third of CO₂ emissions. These emissions were occurring at the same time that many companies within the industry were lobbying against higher fuel efficiency standards despite the well-understood relationship between fuel efficiency, CO₂ emissions, and climate change.⁶⁸ At the recent Copenhagen conference on climate change (Confer-

ence of the Parties 15) delegates were in agreement that global average temperature stabilization is needed by mid-century in order to prevent extreme harm to human populations. Ethical analysis of businesses obligations regarding climate change would benefit from engagement with recent work on the ethics of climate change. Consonant with the observation made above that rights and duties cannot address all moral considerations, a rich literature on the ethics of climate change addressing intergenerational justice, the non-identity problem, moral responsibility, the domination of posterity, and mitigation alternatives, has been produced in recent years by scholars such as Henry Shue, Stephen Gardiner, Simon Caney, Dale Jamieson, and many others.⁶⁹ However, to show the relevance of human rights analysis to a practical issue we will focus on Caney's work on human rights and climate change.

Caney argues that the predicted impact of climate change on human populations will negatively impact the human rights to life, health, and subsistence.⁷⁰ Caney's human rights perspective is compatible with both Kantian and teleological arguments for human rights. One implication of his conclusion is particularly important for business ethicists. It is sometimes argued that climate change is too expensive to prevent and hence this ought not to be done. But, Caney argues, "If emitting greenhouse gases (GHG) results in rights violations it should stop, and the fact that it is expensive does not tell against that claim. A human rights approach thus requires us to reframe the issues surrounding the costs of mitigation and adaptation."⁷¹ Business ethics is frequently concerned with balancing goods and if Caney's arguments are correct much greater attention needs to be paid to balancing wealth creation against human rights violations of present and future persons. On Caney's view, then, the protection of human rights trumps other consideration such as wealth creation.

Caney recognizes the difficulty in achieving GHG emission reductions of the scale needed in an uncoordinated and purely voluntary manner. Given this, he argues that an ethically justified means of distributing the right to use fossil fuel energy needs to be identified and implemented.⁷² One possibility is an equal per capita GHG emission allocation such as that defended by Peter Singer.⁷³ On such a scheme GHG emissions would be capped and allocated to nations on a per capita basis. Individuals and organizations could then buy and sell emissions rights. Caney considers and rejects this egalitarian approach on the grounds that such a scheme would be unfair in two respects. First, it fails to take into account the different needs of individuals. For example, the very young and elderly living in freezing climates will have different resource needs than able bodied individuals living in warm climates but may not be able to afford to purchase additional emission rights. Second, it fails to take into account historical GHG gas emissions so that high and low emitters are treated equally. He points out that on this view no consideration is given to how resources have been consumed and used in the past. Whether, for example, they were used wastefully and for extravagant luxuries on the one hand, or used efficiently and in the interest of basic human welfare on the other hand.

Caney defends an alternative way of thinking about energy rights that is grounded in global equality. He argues that a global cap and trade system, where emission rights are auctioned off and the proceeds used for mitigation and adaptation, is most compatible with equal consideration of human rights. Developing the ideas

of Oliver Tickell, Caney argues that the auction proceeds should be “devoted to a variety of goals including funding a global adaptation fund, incentivizing research on clean energy, rewarding those who create and maintain carbon sinks, buying existing coal reserves so as to prevent them from being used and compensating the existing owners, and so on.”⁷⁴ How such alternative emissions rights schemes will impact business, the extent to which those impacts should influence the scheme that is implemented, and the role businesses should play in the political arena regarding proposals for emissions rights allocations, are among the many questions regarding climate change that business ethicists need to address.

IV. CONCLUSION

The views discussed in this review article provide some perspective on the range, diversity, and depth of contemporary ethical theorizing and its relevance to business ethics. As we have seen, ethical theorists are not in agreement regarding the overarching theoretical framework that should guide ethical theory and practice, but it is apparent that at mid-range level of normative theorizing there is greater agreement on concepts such as beneficence and respect. Intuitionist pluralism, especially in its particularist version, is a relatively young theory, in contrast to the Kantian tradition, and even to the theory of human rights. Work on the ethics of climate change is even more incipient but is developing quickly. The perspectives represented here provide scholars with a range of resources that draw from an ancient tradition of reflection on ethics. Engagement with major elements of this literature is indispensable for normative business ethicists.

NOTES

1. Richard De George, “A History of the Society for Business Ethics on Its 25th Anniversary,” *Society for Business Ethics Newsletter* 16(2) (Fall 2005): 5–10.
2. Tom L. Beauchamp and Norman E. Bowie, *Ethical Theory and Business* (Englewood, N.J.: Prentice Hall, 1979); and Thomas Donaldson and Patricia Werhane, *Ethical Issues in Business: A Philosophical Approach* (Englewood, N.J.: Prentice Hall, 1979).
3. De George, “History of the Society for Business Ethics,” 5.
4. Rawls 1993: 55.
5. I borrow this term from Robert Audi. See Robert Audi, “The Place of Ethical Theory in Business,” in *The Oxford Handbook of Business Ethics*, ed. Tom Beauchamp and George Brenkert (Oxford: Oxford University Press, 2009).
6. Williams 1985: 16.
7. *Ibid.*, 17.
8. For an overview of such counterexamples and common utilitarian responses, see Timmons 2002: chap. 6.
9. As an example of the latter, Fred Feldman asks us to consider an investor who intends to withdraw all her money from the bank once the stock market has climbed two hundred points (Feldman 1978: 116). This maxim may be non-universalizable, and for the same reasons that a maxim of making a false promise is non-universalizable. But it certainly does not seem immoral. As an example of the former, consider a person who decides to act on a maxim of the following very specific form: “I will steal money from Tom Jones on November 27, 2009, in order to buy a new espresso machine.” It is difficult to see how a *contradiction* would be generated in willing this maxim in universal form, yet clearly the maxim is an immoral one on

which to act. Again, for an overview of such counterexamples and Kantian responses to them, see Timmons 2002: 171–75.

10. Timmons 2002: 267.
11. The classic source is Bentham 1970. For a more recent defense of hedonism from a utilitarian perspective, see Feldman 2004.
12. See Mason 2008.
13. See Schmidtz 2006.
14. Ibid., 21.
15. Ibid., 23–24.
16. See, for discussion, Aristotle, *Nicomachean Ethics*, book I, chap. 2, and book II, chaps. 2 and 6. For a more contemporary account of the importance of *phronesis*, see Hursthouse 1999: 59–62; and Foot 2001.
17. Kekes 2000: 67.
18. Ibid., 68.
19. See Ross 1930. For a more recent exposition of this form of pluralism, see Audi 1997.
20. For a helpful overview of recent work on this topic, see Flynn 2010: 140–48.
21. For an extended discussion and defense, see Dancy 2004.
22. See Dancy 2009.
23. Here it should be noted that Allen Wood has recently shown that Kant did not maintain the view that it is always wrong to lie. See Wood 2008: chap. 14.
24. For a discussion of holism by one of its principal defenders, see Dancy 2004: Part II and Dancy 2000. For recent critical discussions of the doctrine, see Audi 2006 and Hooker 2008.
25. See Little 2000: 280.
26. Little 2001.
27. For a discussion of moral defeasible generalizations and their role within a particularist framework, see Lance and Little 2006.
28. Much of what is said about particularism and pluralism in this paper could also be said of virtue ethics. We omit a discussion of the approach from this paper both for reasons of space, and for the reason that the virtue ethics approach, unlike the particularist and pluralist approaches, has already been well-integrated into the business ethics literature. See, in particular, the work of Geoff Moore: Moore 2008, Moore 2005a, and Moore 2005b.
29. See, for example, Klein 1998 and the response in Morse 1999. The issue has also been discussed in other areas of applied ethics, especially medical ethics. See, for instance, Weinstein 1994, Crosthwaite 1995, and Archard forthcoming.
30. This is the argument of Klein 1998.
31. See Rorty 2006.
32. See Morse 1999.
33. Rorty 2006: 371.
34. Ibid.
35. See Koehn 2006: 393, and De George 2006: 383.
36. See, for example, Zwolinski and Schmidtz 2005: §§4–5, 7.
37. For a discussion, see Little 2000.
38. Moral particularism and pluralism are thus compatible with, though they neither entail nor are entailed by, the stress on moral imagination developed by scholars such as Patricia Werhane in Werhane 1999.
39. See Ross 1930.
40. Nagel, Parfit, and Thomson do not call themselves intuitionists, but Nagel and Parfit clearly hold a version of the view and Thomson is at least highly sympathetic with it. See Nagel 1996, Parfit 2010, and Thomson 1990.
41. Another way to understand prima facie duties is to take them to be moral reasons that are at once defeasible yet ineliminable given their grounds. A promissory duty, e.g., may be overridden by an emergency caused by an explosion in one's factory; but, like a weight on a balance scale that is outweighed by the goods to be sold, it is not eliminated. This is why, with broken promises, an explanation is owed to the promisee. A detailed treatment of prima facie duties is given in Audi 2004: chaps. 1 and 2.
42. Ibid., chap. 5.

43. The importance of what I am calling obligations of manner is amply confirmed by many of the examples of ethical role modeling in Weaver, Treviño, and Agle 2005.
44. The relevant notion of self-evidence is explicated in Audi 2004: chap. 1.
45. How Kantian ethics may be used to support the truth of Rossian principles of prima facie obligation is shown in Audi 2004: chap. 3.
46. This point is argued in Audi and Murphy 2006.
47. See, e.g., George 2003 for authenticity conceived as covering a wide range of moral and morally valuable traits.
48. For a wide conception of transparency, see Baum 2004.
49. This is defended in Audi 2004 and, in a different way, with quite specific principles of resolution in Postow 2006.
50. This five-step model is discussed in more detail in Audi 2004: chap. 4.
51. Shue 1996. For recent discussion of Shue's influential work, see the collection of essays written in his honor: Charles R. Beitz and Robert E. Goodin, eds., *Global Basic Rights* (New York: Oxford University Press, 2009).
52. Wenar 2005.
53. *Ibid.*, 229.
54. Sen 2009: 362.
55. Ignatieff 2001: 86.
56. Rorty 1993.
57. Schaefer 2005: 1–24, 6.
58. *Ibid.*, 15.
59. Griffin 2008.
60. *Ibid.*, 36.
61. *Ibid.*, 149–58.
62. *Ibid.*, 159–75.
63. *Ibid.*, 176–87.
64. Audi 2005: 121–39.
65. For other important discussions of rights, see Kramer, Simmonds, and Steiner 1998 and Beitz 2009.
66. UN Commission on Human Rights, *Human Rights Resolution 2005/69: Human Rights and Transnational Corporations and Other Business Enterprises*, 20 April 2005, E/CN.4/RES/2005/69, available at: <http://www.unhcr.org/refworld/docid/45377c80c.html> (accessed 10 January 2010).
67. A recent exception is Arnold 2010b.
68. For discussion, see Arnold and Bustos 2005.
69. Many of the seminal works in the field are collected in Gardiner, Caney, Jamieson, and Shue 2010; for an important overview of the ethical issues regarding climate change, see Gardiner 2004. More recent work on climate change ethics is found in Arnold 2010a. See also Gardiner 2010.
70. Caney 2009.
71. *Ibid.*, 87.
72. Caney forthcoming.
73. Peter Singer, *One World: The Ethics of Globalization* (New Haven, Conn.: Yale University Press, 2002), 43.
74. Caney forthcoming. For Oliver Tickell's Kyoto2 proposal see <http://www.kyoto2.org/page1.html>.

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